

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF KINGS

-----X
DAUNTE GRAY,

Plaintiff,

-against-

THE CITY OF NEW YORK, P.O. FRANCISCO
MATIREYES, Shield No. 15296 (Tax Id. No.
951972), Individually and in his/her Official Capacity,
P.O. GREGG MINARDI, Shield No. 608 (Tax Id. No.
940475), Individually and in his Official Capacity,
and POLICE OFFICERS "JOHN DOE" #1-10,
Individually and in their Official Capacity (the name
John Doe being fictitious, as the true names are
presently unknown),

Defendants.

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SUMMONS

Jury Trial Demanded

Plaintiff designates Kings County
as the place of trial.

The basis of venue is:
CPLR § 504(3)

To the above-named Defendants:

You are hereby summoned to answer the Complaint in this action, and to serve a copy of your answer, or, if the Complaint is not served with this Summons, to serve a notice of appearance on the Plaintiffs' attorney within 20 days after the service of this Summons, exclusive of the day of service, where service is made by delivery upon you personally within the state, or, within 30 days after completion of service where service is made in any other manner. In case of your failure to appear or answer, judgment will be taken against you by default for the relief demanded in the Complaint.

Dated: NEW YORK, NEW YORK
May 28, 2020

COHEN & FITCH LLP
Attorneys for Plaintiff
225 Broadway, Suite 2700
New York, N.Y. 10007
(212) 374-9115

TO:

JAMES E. JOHNSON
Corporation Counsel of the City of New York
100 Church Street
New York, New York 10007

P.O. FRANCISCO MATIREYES, Shield No. 15296 (Tax Id. No. 951972)
90th Precinct
211 Union Ave.
Brooklyn, NY 11211

P.O. GREGG MINARDI, Shield No. 608 (Tax Id. No. 940475)
90th Precinct
211 Union Ave.
Brooklyn, NY 11211

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Defendants.

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Plaintiff DAUNTE GRAY by his attorneys, COHEN & FITCH LLP, complaining of the
defendants, respectfully allege as follows:

FACTS

1. Plaintiff DAUNTE GRAY is an African-American male and has been at all relevant times a resident of Kings County in the State of New York.
2. Defendant, THE CITY OF NEW YORK, was and is a municipal corporation duly organized and existing under and by virtue of the laws of the State of New York.
3. Defendant, THE CITY OF NEW YORK, maintains the New York City Police Department, duly authorized public authorities and/or police departments, authorized to perform all functions of a police department as per the applicable sections of the New York State Criminal Procedure Law, acting under the direction and supervision of the aforementioned municipal corporation, The City of New York.

4. That at all times hereinafter mentioned the individually named defendants, P.O. FRANCISCO MATIREYES, Shield No. 15296 (Tax Id. No. 951972), P.O. GREGG MINARDI, Shield No. 608 (Tax Id. No. 940475), and POLICE OFFICERS “JOHN DOE” #1-10 were duly sworn police officers of said department and were acting under the supervision of said department and according to their official duties.

5. That at all times hereinafter mentioned the defendants, either personally or through their employees, were acting under color of state law and/or in compliance with the official rules, regulations, laws, statutes, customs, usages and/or practices of the State or City of New York.

6. Each and all of the acts of the defendants alleged herein were done by said defendants while acting within the scope of their employment by defendant THE CITY OF NEW YORK.

7. Each and all of the acts of the defendants alleged herein were done by said defendants while acting in furtherance of their employment by defendant THE CITY OF NEW YORK.

The Incident

8. On or about August 3, 2018, at approximately 10:50 p.m., plaintiff DAUNTE GRAY was lawfully present in the vicinity of 60 Moore St., in the County of Kings, City, and State of New York

9. At the above-mentioned time, place, and location, plaintiff was accosted by several members of the NYPD, including defendants MATIREYES, GREGG, and/or POLICE OFFICERS “JOHN DOE” #1-10.

10. Prior to being approached by defendants MATIREYES, GREGG, and/or POLICE OFFICERS "JOHN DOE" #1-10, plaintiff had not committed any crimes or offenses which would have justified him being accosted by defendants.

11. Subsequently, defendants MATIREYES, GREGG, and/or POLICE OFFICERS "JOHN DOE" #1-10 directed plaintiff to provide them with identification. In response, plaintiff requested to know why he was being detained, as he had not committed any crimes and/or offenses, but did not refuse to provide identification.

12. Several minutes later, defendants MATIREYES, GREGG, and/or POLICE OFFICERS "JOHN DOE" #1-10 grabbed plaintiff by his shoulder and arm, pushed him up against a car, and then placed him under arrest by handcuffing his arms tightly behind his back.

13. At no time on August 3, 2018, did defendants MATIREYES, GREGG, and/or POLICE OFFICERS "JOHN DOE" #1-10 possess probable cause to arrest plaintiff.

14. At no time on August 3, 2018, did defendants MATIREYES, GREGG, and/or POLICE OFFICERS "JOHN DOE" #1-10 possess information that would lead a reasonable officer to believe probable cause existed to arrest plaintiff.

15. Thereafter, defendants MATIREYES, GREGG, and/or POLICE OFFICERS "JOHN DOE" #1-10 searched plaintiff's person and effects. However, no contraband was found on plaintiff nor recovered from his person or effects as a result of this search, nor did he have custody or control over any contraband.

16. At no time on August 3, 2018, did defendants MATIREYES, GREGG, and/or POLICE OFFICERS "JOHN DOE" #1-10 possess probable cause and/or reasonable suspicion to search plaintiff's person or effects nor did they obtain voluntary consent from him to do so.

17. At no time on August 3, 2018, did defendants MATIREYES, GREGG, and/or POLICE OFFICERS “JOHN DOE” #1-10 possess information that would lead a reasonable officer to believe probable cause and/or reasonable suspicion existed to search plaintiff’s persons or effects.

18. At no time on August 3, 2018, did plaintiff consume any alcoholic beverages in public, nor did he possess any contraband and/or have custody and control over any contraband, nor did he resist arrest, nor did he commit any crimes or offenses or behave unlawfully in any way, nor was any evidence or contraband found on his person and/or effects and/or in his custody or control.

19. Thereafter, plaintiff was transported to a nearby police precinct where he was subjected to an invasive strip search, fingerprinted, photographed, confined against his will in a holding cell for several hours, and charged with crimes/offenses by defendants MATIREYES, GREGG, and/or POLICE OFFICERS “JOHN DOE” #1-10. Specifically, plaintiff was charged with Consumption of Alcohol in Public and Resisting Arrest.

20. In addition, defendants MATIREYES, GREGG, and/or POLICE OFFICERS “JOHN DOE” #1-10, confiscated property from plaintiff that was not returned.

21. After being detained at the aforementioned precinct for several hours, plaintiff was transported to Central Booking where he was searched, subjected to a retina scan (“eye scan”) and further detained in holding cells for several hours.

22. In connection with plaintiffs’ arrest, defendants MATIREYES, GREGG, and/or POLICE OFFICERS “JOHN DOE” #1-10 filled out false and/or misleading police reports and forwarded them to prosecutors at the Kings County District Attorney’s Office. Thereafter, defendants MATIREYES, GREGG, and/or POLICE OFFICERS “JOHN DOE” #1-10 repeated

the aforementioned false and misleading information regarding the facts and circumstances of plaintiff's arrest. Specifically, defendants MATIREYES, GREGG, and/or POLICE OFFICERS "JOHN DOE" #1-10 falsely stated, *inter alia*, that they had observed plaintiff drinking from a plastic cup containing an alcoholic beverage in a public place, in that the recognized the odor emanating from said cup as that of alcoholic beverage, and that plaintiff was not participating in a block party, feast, or festival. Defendants further falsely stated that plaintiff resisted a lawful arrest in that plaintiff stiffened his body, pulled away from defendant GREGG, and refused to place his arms and hands behind his back to be handcuffed.

23. As a result of the foregoing, plaintiff spent approximately twenty-four (24) hours in custody before he was released following his arraignment.

24. Plaintiff had to make approximately two (2) court appearances before all charges against him were adjourned in contemplation of dismissal on or about October 22, 2018.

25. As a result of the foregoing, plaintiff sustained, *inter alia*, loss of liberty, physical injuries, economic injuries, mental anguish, shock, fright, apprehension, embarrassment, humiliation, and deprivation of their constitutional rights.

FEDERAL CLAIMS

FIRST CLAIM FOR RELIEF

DEPRIVATION OF FEDERAL RIGHTS UNDER 42 U.S.C. § 1983

26. Plaintiff repeats, reiterates, and re-alleges each and every allegation contained in the proceeding paragraphs with the same force and effect as if fully set forth herein.

27. All of the aforementioned acts of defendants, their agents, servants, and employees, were carried out under the color of state law.

28. All of the aforementioned acts deprived plaintiff of his rights, privileges, and immunities guaranteed to citizens of the United States by the Fourth and Fourteenth

Amendments to the Constitution of the United States of America, and in violation of 42 U.S.C. § 1983.

29. The acts complained of were carried out by the aforementioned individual defendants in their capacities as police officers with all the actual and/or apparent authority attendant thereto.

30. The acts complained of were carried out by the aforementioned individual defendants in their capacities as police officers, pursuant to the customs, usages, practices, procedures, and the rules of the City of New York, the New York City Police Department, all under the supervision of ranking officers of said department.

31. Defendants, collectively and individually, while acting under color of state law, engaged in conduct which constituted a custom, usage, practice, procedure or rule of the respective municipality/authority, which is forbidden by the Constitution of the United States.

**SECOND CLAIM FOR RELIEF ARISING
FALSE ARREST UNDER 42 U.S.C. § 1983**

32. Plaintiff repeats, reiterates, and re-alleges each and every allegation contained in the proceeding paragraphs with the same force and effect as if fully set forth herein.

33. As a result of the aforesaid conduct by defendants MATIREYES, GREGG, and/or POLICE OFFICERS “JOHN DOE” #1-10, plaintiff was subjected to an illegal, improper, and false arrest by the defendants MATIREYES, GREGG, and/or POLICE OFFICERS “JOHN DOE” #1-10, taken into custody and caused to be falsely imprisoned, detained, and confined, without any probable cause, privilege or consent.

34. As a result of the foregoing, plaintiff’s liberties were restricted for an extended period of time, he was put in fear for his safety, and he was humiliated, searched, and subjected to handcuffing and other physical restraints, without probable cause.

THIRD CLAIM FOR RELIEF
DENIAL OF CONSTITUTIONAL RIGHT TO FAIR TRIAL UNDER 42 U.S.C. § 1983

35. Plaintiff repeats, reiterates, and re-alleges each and every allegation contained in the proceeding paragraphs with the same force and effect as if fully set forth herein.

36. Defendants MATIREYES, GREGG, and/or POLICE OFFICERS “JOHN DOE” #1-10 created false evidence against the plaintiff.

37. Defendants MATIREYES, GREGG, and/or POLICE OFFICERS “JOHN DOE” #1-10 forwarded false evidence and false information to prosecutors in the Kings County District Attorney’s Office – namely, the defendants falsely informed prosecutors *inter alia*, that they had observed plaintiff drinking from a plastic cup containing an alcoholic beverage in a public place, in that the recognized the odor emanating from said cup as that of alcoholic beverage, and that plaintiff was not participating in a block party, feast, or festival. Defendants further falsely stated that plaintiff resisted a lawful arrest in that plaintiff stiffened his body, pulled away from defendant GREGG, and refused to place his arms and hands behind his back to be handcuffed.

38. Defendants MATIREYES, GREGG, and/or POLICE OFFICERS “JOHN DOE” #1-10 misled the prosecutors by creating false evidence against the plaintiff and thereafter providing the aforementioned false statements throughout the criminal proceedings.

39. In creating false evidence against the plaintiff, in forwarding false evidence and information to prosecutors, and in providing false and misleading sworn statements, defendants MATIREYES, GREGG, and/or POLICE OFFICERS “JOHN DOE” #1-10 violated plaintiff’s constitutional right to a fair trial under the Sixth Amendment and the Due Process Clause of the Fifth and Fourteenth Amendments of the United States Constitution.

40. As a result of the foregoing, plaintiff's liberty was restricted for an extended period of time, he was put in fear for his safety, and he was humiliated and subjected to handcuffing and other physical restraints without probable cause.

FOURTH CLAIM FOR RELIEF
FIRST AMENDMENT VIOLATION UNDER 42 U.S.C. § 1983

41. Plaintiff repeats, reiterates, and realleges each and every allegation contained in the proceeding paragraphs with the same force and effect as if fully set forth herein.

42. By their conduct, as described herein, and acting under color of state law to deprive the plaintiff of his right to freedom of speech under the First and Fourteenth Amendments, defendants MATIREYES, GREGG, and/or POLICE OFFICERS "JOHN DOE" #1-10 are liable for the violation of 42 U.S.C. § 1983, which prohibits the deprivation under color of state law of rights secured under the United States Constitution.

43. Defendants MATIREYES, GREGG, and/or POLICE OFFICERS "JOHN DOE" #1-10 violated plaintiff's First Amendment rights to speech by unlawfully denying him the right to speak freely by subjecting him to false arrest to deter the exercise of his First Amendment rights.

44. Defendants MATIREYES, GREGG, and/or POLICE OFFICERS "JOHN DOE" #1-10's actions were taken in retaliation for plaintiff exercising his First Amendment rights against defendants MATIREYES, GREGG, and/or POLICE OFFICERS "JOHN DOE" #1-10. Specifically, defendants' actions were taken in retaliation to plaintiff's verbal request to know why he was being detained by defendants MATIREYES, GREGG, and/or POLICE OFFICERS "JOHN DOE" #1-10 despite having not committed any crimes and/or offenses which would have justified his detention.

45. As a consequence of defendants' MATIREYES, GREGG, and/or POLICE OFFICERS "JOHN DOE" #1-10's actions, plaintiff suffered violations of his First and Fourteenth Amendment rights to free speech.

46. As a direct and proximate result of the defendants MATIREYES, GREGG, and/or POLICE OFFICERS "JOHN DOE" #1-10's unlawful actions, plaintiff has suffered damages including, loss of liberty, economic damages, physical injuries, mental and emotional injury and pain, mental anguish, suffering, humiliation, embarrassment, and loss of reputation.

FIFTH CLAIM FOR RELIEF
UNLAWFUL STRIP SEARCH UNDER 42 U.S.C. § 1983

47. Plaintiff repeats, reiterates, and re-alleges each and every allegation contained in the proceeding paragraphs with the same force and effect as if fully set forth herein.

48. Plaintiff was invasively strip-searched by defendants MATIREYES, GREGG, and/or POLICE OFFICERS "JOHN DOE" #1-10 without an individualized reasonable suspicion that plaintiff was concealing contraband based on the particular characteristics of the plaintiff and/or the circumstances of his arrest.

49. As a result of the aforesaid conduct by defendants MATIREYES, GREGG, and/or POLICE OFFICERS "JOHN DOE" #1-10 plaintiff's persons was illegally and improperly searched without consent, a valid warrant, probable cause, and a specific articulable factual basis supporting a reasonable suspicion and/or probable cause to believe plaintiff secreted contraband, evidence, or had a weapon and/or controlled substances and/or marijuana inside a body cavity warranting such a search, in violation of his constitutional rights as set forth in the Fourth, Fifth, and Fourteenth Amendments to the Constitution of the United States.

50. As a result of the foregoing, plaintiff was deprived of his Constitutional rights and has suffered physical pain and mental anguish, together with shock, fright, apprehension, embarrassment and humiliation.

SIXTH CLAIM FOR RELIEF
FAILURE TO INTERCEDE UNDER 42 U.S.C. § 1983

51. Plaintiff repeats, reiterates, and realleges each and every allegation contained in the proceeding paragraphs with the same force and effect as if fully set forth herein.

52. Defendants MATIREYES, GREGG, and/or POLICE OFFICERS “JOHN DOE” #1-10 had an affirmative duty to intercede when plaintiff’s constitutional rights were being violated in defendants’ presence by the misrepresentation and falsification of evidence regarding the circumstances surrounding plaintiff’s arrest throughout all phases of the criminal proceedings.

53. Defendants MATIREYES, GREGG, and/or POLICE OFFICERS “JOHN DOE” #1-10 further violated plaintiff’s constitutional rights when they failed to intercede and prevent the violation or further violation of plaintiff’s constitutional rights and the injuries or further injuries caused as a result of said failure.

54. As a result of the defendants’ failure to intercede when plaintiff’s constitutional rights were being violated in defendants’ presence, plaintiff sustained, *inter alia*, emotional injuries, plaintiff’s liberty was restricted for an extended period of time, he was put in fear for his safety, and he was humiliated and subjected to handcuffing and other physical restraints, without probable cause.

SEVENTH CLAIM FOR RELIEF
MUNICIPAL LIABILITY UNDER 42 U.S.C. § 1983

55. Plaintiff repeats, reiterates, and re-alleges each and every allegation contained in the proceeding paragraphs with the same force and effect as if fully set forth herein.

56. Defendants, collectively and individually, while acting under color of state law, engaged in conduct that constituted a custom, usage, practice, procedure or rule of the respective municipality/authority, which is forbidden by the Constitution of the United States.

57. The aforementioned customs, policies, usages, practices, procedures, and rules of the City of New York and the New York City Police Department include, but are not limited to, the following unconstitutional practices:

- A. arresting individuals regardless of probable cause in order to inflate the officer's arrest statistics; and,
- B. arresting innocent persons notwithstanding the existence of credible evidence which exonerates the accused of any criminal wrongdoing; and,
- C. fabricating evidence in connection with their arrest/prosecution in order to cover up police misconduct; and,
- D. arresting individuals regardless of probable cause in order to deprive individuals of their right to freedom of speech under the First and Fourteenth Amendments and/or in retaliation for individuals exercising their First Amendment rights; and,
- E. strip searching individuals without an individualized reasonable suspicion that they are concealing weapons, drugs, and/or contraband based on the particular characteristics of the individual and/or the circumstances of the arrest; and,
- F. arresting innocent persons notwithstanding the existence of credible evidence which exonerates the accused of any criminal wrongdoing and regardless of probable cause, for the purpose of obtaining overtime compensation; and,
- G. failing to take reasonable steps to control and/or discipline police officers who lie, fabricate evidence, and/or commit perjury in order to cover up police misconduct and/or inflate arrest statistics.

58. The foregoing customs, policies, usages, practices, procedures, and rules of the City of New York and the New York City Police Department constituted deliberate indifference to the safety, well-being and constitutional rights of the plaintiffs.

59. The foregoing customs, policies, usages, practices, procedures, and rules of the City of New York and the New York City Police Department were the direct and proximate cause of the constitutional violations suffered by the plaintiffs as alleged herein.

60. The foregoing customs, policies, usages, practices, procedures, and rules of the City of New York and the New York City Police Department were the moving force behind the constitutional violations suffered by the plaintiffs as alleged herein.

61. Defendants, collectively and individually, while acting under color of state law, were directly and actively involved in violating the plaintiffs' constitutional rights.

62. Defendants, collectively and individually, while acting under color of state law, acquiesced in a pattern of unconstitutional conduct by subordinate police officers, and were directly responsible for the violation of the plaintiffs' constitutional rights.

63. The acts complained of deprived the plaintiffs of their rights:

- A. Not to be deprived of liberty without due process of law;
- B. To be free from seizure and arrest not based upon probable cause;
- C. Not to have summary punishment imposed upon them; and
- D. To receive equal protection under the law.

WHEREFORE, plaintiffs respectfully request judgment against defendants as follows:

- i. an order awarding compensatory damages in an amount to be determined at trial;
- ii. an order awarding punitive damages in an amount to be determined at trial;
- iii. reasonable attorneys' fees and costs; and

- iv. directing such other and further relief as the Court may deem just and proper, together with attorneys' fees, interest, costs, and disbursements of this action.

Dated: New York, New York
May 28, 2020

BY:_____/S_____
ILYSSA FUCHS
GERALD COHEN
JOSHUA FITCH
COHEN & FITCH LLP
Attorneys for Plaintiff
225 Broadway, Suite 2700
New York, N.Y. 10007
(212) 374-9115

ATTORNEY'S VERIFICATION

ILYSSA S. FUCHS, an attorney duly admitted to practice law in the Courts of the State of New York, states:

That she is a member of the law firm of COHEN & FITCH, LLP the attorneys for the plaintiff DAUNTE GRAY in the within entitled action.

That your deponent has read the foregoing **COMPLAINT** and knows the contents thereof, and that the same is true to her own knowledge, except as to the matters therein stated to be alleged upon information and belief, and as to those matters, she believes it to be true.

That the source of the deponent's information are investigation and records in the file.

That the reason why the verification is made by deponent and not by the plaintiff is that the plaintiff is not within the county wherein deponent maintains her office.

Deponent affirms that the foregoing statements are true under the penalties of perjury.

Dated: New York, New York
May 28, 2020

_____/S_____
ILYSSA S. FUCHS